

Tentative Rulings for June 23, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2306649	VASQUEZ VS KIA AMERICA, INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

GRANT the Motion for Attorney's fees and costs in the reduced, reasonable amount of \$41,215 (attorney's fees of \$37,732.50 plus costs of \$3,482.50).

Plaintiff counsel's requested hourly rates are not reasonable for the Riverside geographic area. This is a simple lemon law case. Plaintiffs make no showing that they could not obtain local counsel and are therefore entitled to out-of-town rates. The court will reduce the hourly rates of attorneys Daghighian and Rosenstein to \$525 per hour; Brim, Murray and Hamblin to \$400 per hour; and Ortiz to \$375 per hour. The court will allow the following expenditures of time on the case: Brim, 57 hours, Daghighian, 2.1 hours, Hamblin, 1 hour, Murray, 0.2 hours, Ortiz, 14.6 hours, Rosenstein, 15 hours. (Total of 89.9 hours for a fee award of \$37,732.50.) No multiplier is awarded as this is an uncomplicated lemon law case.

The requested costs are proper and were necessary and reasonable in the litigation.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405595	VALENCIA VS MANERI TRAFFIC CONTROL, INC., A CALIFORNIA CORPORATION	MOTION FOR LEAVE TO AMEND

Tentative Ruling:

GRANT the Motion for Leave to Amend.

The Proposed First Amended Complaint is Ordered filed herewith.

The First Amended Complaint shall be the operative pleading in this matter.